

Form FD12A

20

No.

Supreme Court of Nova Scotia
(Family Division)

Between: [copy standard heading]

[name]

Applicant

and

[name]

Co-Applicant

Affidavit Supporting an Uncontested Divorce (Joint Application)

We [make oath/affirm] and give evidence as follows:

- 1 We are [name] and [name], the applicants in this proceeding.
- 2 We filed a joint application for divorce on [date], 20 , and this affidavit provides the required supporting evidence.
- 3 We have personal knowledge of the evidence [sworn to/affirmed] in this affidavit except where otherwise stated to be based on information or belief.
- 4 We state, in this affidavit, the source of any information that is not based on our own personal knowledge, and we state our belief of the source.

Application, jurisdiction, and details of marriage

- 5a We confirm that all the information contained in the divorce application is true and accurate to the best of our knowledge and that [name] lives in [address], and [name] lives in [address].
- 5b The applicant [name] was habitually resident in Nova Scotia for at least one year before the day this application was signed and, in particular since [date].
- 5c The following are the details of the marriage:
 - Date of marriage:
 - Place of marriage:

- Surnames and given names on the day before marriage
Applicant:
Co-applicant:
- Gender on the day before marriage
Applicant: ☐ male ☐ female ☐ another gender
Co-applicant: ☐ male ☐ female ☐ another gender
- Marital status when married
Applicant: ☐ single ☐ divorced
Co-applicant: ☐ single ☐ divorced
- Place and date of birth
Applicant:
Co-applicant:

Financial statements

- 6 The financial statements filed remain true and accurate, to the best of our knowledge
[except for the following corrections or changes: provide details] .

Reconciliation

- 7 There is no possibility of reconciliation between the applicant and co-applicant.

Ground

- 8 We are seeking a divorce on the ground that our marriage has permanently broken down
and, in particular, that the co-applicant and I were living separate and apart since [date]
. We were living separate and apart at the commencement of the proceeding and have
lived separate and apart for at least one year immediately preceding the determination of
the divorce proceeding.

Collusion

- 9 There was no collusion in relation to these proceedings.

Written agreement or previous court order

- 10 Attached is a true copy of [the written agreement between the co-applicant and me
dated _____, 20____, /a true copy of the court order dated
_____, 20____, /describe combination of written agreement and court order addressing corollary
relief] _____ in settlement of all corollary matters.

Children

11 There are no children of the marriage as described in the *Divorce Act*.

[or]

[If these paragraphs are used, renumber them and the paragraphs that follow in sequence.]

11a The full names and birth dates of the children are: [provide details] .

11b [Set out in general terms the decision-making responsibility, parenting time, and parenting arrangements in the agreement.]

11c There are, and there were, no other proceedings or circumstances between the parties or affecting the well-being or safety of the [children/parties] .

[or]

11c There are, or there were, other proceedings or circumstances between the parties or affecting the well-being or safety of the [children/parties,] the details of which are set out the following table:

Type of proceeding(s) & court file number	[provide court file number & describe the type of proceeding, for instance, civil, protection, criminal or other]
Order(s) or other measure	[describe any relevant order, including an order to protect a person's safety, recognizance or undertaking, peace bond, condition, etc.]
Circumstance(s)	[describe]

11d [Set out in general terms the child support provisions of the agreement, as well as the present employment and annual incomes of the parties. If child support is not to be paid or if the amount differs significantly from the *Guidelines*, explain why.]

11e [Refer to any benefits being retained or provided for the children, including medical, dental and drug plan coverage, life insurance, etc.]

11f [Explain the basis upon which the applicants conclude that the agreement makes reasonable arrangements for the support of the children.]

11g [Set out the details of any court order or request for a court order for contact, interaction or parenting arrangements with the child/children of the marriage by a person who is not a party to this proceeding, including party names and court file number.]

Spousal support

12 No spousal support will be paid by either party to the other.

[or]

12 [Set out in general terms the spousal support provisions of the agreement. If present employment and annual incomes are not provided above under "Children", provide those particulars here.]

Costs

13 We are not seeking costs.

[or]

[If these paragraphs are used, renumber them and the paragraphs that follow in sequence.]

13a I am seeking costs in the amount of [\$] .

13b [State the basis for the claim for costs and the amount.]

Request for relief

14 We request that this Honourable Court grant our application for a divorce order. We also request that the terms and conditions of [our written agreement dated , 20 /court order dated , 20 /written agreement dated , 20 and court order dated , 20] be incorporated in and form part of the corollary relief order.

15 [Set out any special relief or unusual circumstances affecting relief, if applicable, and renumber any remaining paragraphs as required.]

Change of name [may delete this section if it does not apply]

16 I am seeking an order changing my name from [present full name] to [full name, including middle name(s)] .

17 Prior to my marriage to the [applicant/co-applicant] , my name was [pre-marriage name] . My name at birth was [name] , and I was born on [date] .
[Provide particulars for example, full name on birth certificate, including middle name(s).]

[*Sworn to/Affirmed*] before me)
on [date] , 20)
at [City/Town] , Nova Scotia)
)
)
_____)

Signature of Authority
Print name:
Official capacity:

Signature of applicant

[*Sworn to/Affirmed*] before me)
on [date] , 20)
at [City/Town] , Nova Scotia)
)
)
_____)

Signature of Authority
Print name:
Official capacity:

Signature of co-applicant